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United States District Court, N.D. California

MANN
v.
META PLATFORMS INC.

Case No. 24-cv-09348-DMR

Decided August 18, 2025

Opinion of the court

Attorneys and Law Firms Gerald Mann, Tucson, AZ, Pro Se

REQUEST FOR REASSIGNMENT TO DISTRICT JUDGE AND REPORT AND RECOMMENDATION TO DISMISS AMENDED COMPLAINT DONNA M. RYU, Chief Magistrate Judge Self-represented Plaintiff Gerald Mann filed a complaint and an application for leave to proceed in forma pauperis (“IFP”). [Docket No. 1 (Compl.); Docket No. 2 (IFP Appl.)] On April 11, 2025, the court granted the IFP application and screened the complaint pursuant to 28 U.S.C. § 1915(e). [Docket No. 8 (OSC).] Because the court found that it was not clear that Mann's complaint could overcome § 230 of the Communications Decency Act of 1996, 47 U.S.C. § 230, the court ordered Plaintiff to show cause as to why his case should not be dismissed. *Id.* at 4-5. In response, Mann stated that § 230 “may not apply” because of “Meta's promise in their terms to maintain a safe community and prohibit unlawful content” and asked for an extension to file an amended complaint. [Docket No. 9 at 4; see Docket No. 8 (explaining why Mann's theory of liability is barred by Section 230).] The court ordered Mann to file an amended complaint by June 13, 2025 and noted that “his response did not contain any specific information suggesting he will be able to amend and salvage his complaint.” [Docket No. 10 at 2.]

Plaintiff timely filed an amended complaint. [Docket No. 11 (Am. Compl.).] All parties have not consented to the jurisdiction of a magistrate judge pursuant to 28 U.S.C. § 636(c). Therefore, the court issues herein a Report and Recommendation and reassigns this case to a district judge for final disposition, with the recommendation that the amended complaint be dismissed without leave to amend. I. BACKGROUND A. Allegations of the Amended Complaint Mann was a Facebook user between January 2010 and December 2023. *Am. Compl.* at 3. He alleges that, “[d]uring 2023, Facebook's algorithm repeatedly recommended [that] Plaintiff join ‘Crystal Meth Drug Groups’ featuring content glorifying illegal drug use.” *Id.* at 4. He further alleges that Meta did not provide warnings about the “[p]latform's algorithmic shift,” “increased exposure risks,” or “psychological dangers.” *Id.* Mann asserts that this caused him “severe mental anguish” and “[p]ermanent loss of relationships.” *Id.* Mann also points to testimony by Meta's CEO that “ ‘Facebook no longer serves its original purpose ... [and is] now a showcase where the algorithm is in charge.’” *Id.* at 4 (citing *Am. Compl.*, Ex. A). Mann brings two claims: (1) negligence based on a failure to warn theory, and (2) negligent infliction of emotional distress (“NIED”). *Id.* at 4-5. He seeks \$5 million in compensatory damages, \$15 million in punitive damages, an injunction requiring Meta to provide “[c]lear algorithmic risk warnings” and “[a]lgorithmic content opt-out,” and costs. *Id.* at 5-6. B. The Court's OSC In dismissing Mann's initial complaint, the court found that “Mann's claims may well be barred by section 230 of the Communications Decency Act of 1996.”

OSC at 2; see *id.* at 3 (“Broken into elements, § 230(c) will require dismissal of Mann's state law claims if: ‘(1) Meta is a provider or user of an interactive computer service, (2) the information for which Mann seeks to hold Meta liable was information provided by another information content provider, and (3) the

complaint seeks to hold Meta as the publisher or speaker of that information.’ ”) (cleaned up). The court found each element met here. First, the court found that other “courts regularly find that Meta and Facebook are providers of interactive computer services.” *Id.* at 3 (citing *Calise v. Meta Platforms*, 103 F.4th 732, 738 (9th Cir. 2024); *Caraccioli v. Facebook, Inc.*, 167 F. Supp. 3d 1056, 1065 (N.D. Cal. 2016)). Second, the court found that “[Mann] appears to allege that the meth-related information for which he is trying to hold Meta liable was created by other Facebook users even if it was ‘sent’ to him by Meta/Facebook or otherwise displayed ‘on [his] personal feed.’ ” *Id.* (quoting Compl. ¶¶ 6-7). Third, the court concluded that, “[u]nless Mann can point to specific promises in the terms of service or elsewhere, establishing a contractual or legal duty, Meta's failure to remove meth-related third-party content arises from Meta's status as a publisher and would require Meta to monitor (and more effectively remove) such content” and was thus precluded by § 230. *Id.* II. LEGAL STANDARD A court is under a continuing duty to dismiss a case filed without the payment of the filing fee whenever it determines that the action “(i) is frivolous or malicious; (ii) fails to state a claim on which relief may be granted; or (iii) seeks monetary relief against a defendant who is immune from such relief.” 28 U.S.C. § 1915(e)(2)(B)(i)-(iii). If the court dismisses a case pursuant to § 1915(e)(2)(B), the plaintiff may still file the same complaint by paying the filing fee. This is because the court's § 1915(e)(2)(B) dismissal is not on the merits, but rather an exercise of the court's discretion under the IFP statute. *Denton v. Hernandez*, 504 U.S. 25, 32 (1992). To make the determination under 28 U.S.C. § 1915(e)(2)(B), courts assess whether there is an arguable factual and legal basis for the asserted wrong, “however inartfully pleaded.” *Franklin v. Murphy*, 745 F.2d 1221, 1227-28 (9th Cir. 1984). Courts have the authority to dismiss complaints founded on “wholly fanciful” factual allegations for lack of subject matter jurisdiction. *Id.* at 1228. A court can also dismiss a complaint where it is based solely on conclusory statements, naked assertions without any factual basis, or allegations that are not plausible on their face. *Ashcroft v. Iqbal*, 556 U.S. 662, 677-78 (2009); see also *Erickson v. Pardus*, 551 U.S. 89 (2007) (*per curiam*)

Although pro se pleadings are liberally construed and held to a less stringent standard than those drafted by lawyers, see *Haines v. Kerner*, 404 U.S. 519, 520-21 (1972), a complaint, or portion thereof, should be dismissed for failure to state a claim if it fails to set forth “enough facts to state a claim to relief that is plausible on its face.” *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 554 (2007); see also Fed. R. Civ. P. 12(b)(6). “[A] district court should not dismiss a pro se complaint without leave to amend unless it is absolutely clear that the deficiencies of the complaint could not be cured by amendment.” *Akhtar v. Mesa*, 698 F.3d 1202, 1212 (9th Cir. 2012) (quotations omitted). III. DISCUSSION The allegations in Mann's amended complaint are substantially identical to the allegations in his initial complaint – Meta exposed him to third-party content on Facebook relating to drug use that Mann found distressing. Compare Compl. at 3-4 with Am. Compl. at 3-4; see OSC at 1-2 (summarizing allegations of the complaint). The amended complaint does not contain any new allegations that allow the court to find that § 230 immunity does not apply. Thus, for the reasons stated in the court's OSC, § 230 bars Mann's claims. See OSC at 2-4. Mann's citation to the testimony of Meta's CEO does not compel a different result. A statement that “Facebook no longer serves its original purpose” and is “now a showcase where the algorithm is in charge” (Am. Compl. at 4) does not render Meta responsible for third-party content on the Facebook platform. This does not amount to a specific promise to remove meth-related third-party content such that § 230 immunity does not

apply. See Calise, 103 F.4th at 742 (“If [the duty to remove content] springs from something separate from the defendant's status as a publisher, such as from an agreement, ... or from obligations the defendant has in a different capacity, ... then § 230(c)(1) does not apply.”) (citations omitted) As Mann has had two prior opportunities to identify facts that would overcome § 230's bar, the court recommends that the district judge dismiss the amended complaint without leave to amend

IV. CONCLUSION For the reasons above, the court recommends that Mann's amended complaint be dismissed without leave to amend. The Clerk is directed to reassign this case to a district judge. Any party may file objections to this report and recommendation with the district judge within 14 days after being served with a copy. See 28 U.S.C. § 636(b)(1); Fed. R. Civ. P. 72(a); Civ. L.R. 72-2

The court refers Mann to the section “Representing Yourself” on the Court's website, located at <https://cand.uscourts.gov/pro-se-litigants/>, as well as the Court's Legal Help Centers for unrepresented parties. Parties may schedule an appointment by calling 415-782-8982 or emailing fedpro@sfbar.org. IT IS SO ORDERED